

The Claremont City Council held a meeting on Wednesday, September 22, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois via Zoom, home, alone
Ward III Councilor Jonathan Stone

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

Mayor Lovett recommended changing the order to put the items Fire Chief Bryan Burr was presenting, together: A. Airport Master Plan Update (City Manager); C. Resolution 2022-8 Airport Runway Rehabilitation Project Grant – Public Hearing (City Manager); Resolution 2022-9 AFG Fire Prevention Grant for Smoke Alarms – Public Hearing (City Manager); E. Resolution 2022-9 AFG Fire Prevention Grant for Smoke Alarms – Public Hearing (City Manager); B. Annual Approval of Investment Policy (City Manager); Ordinance 585 Remove School Zones – First Reading (City Manager). Council agreed.

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Councilor Stone to accept the minutes of the August 31, 2021, City Council meeting.

Roll call vote:

**O’Hearne - yes
Girard - yes
Demars - yes
Damren - yes
Matteau - yes**

Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to accept the minutes of the September 8, 2021, City Council meeting, as amended

Mayor Lovett said on page 14, during the discussion about debt/bonds and when they expire, she thought she heard that the information would also be included in the Finance Director's Report. Councilors agreed to add that to the end of that section on page 14.

Roll call vote:
O'Hearne - yes
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

MAYOR'S NOTES

Stevens High School Alumni Week Proclamation

Mayor Lovett presented the Stevens High School Alumni Week Proclamation to members of the SHS Alumni Association. She reminded all that the Association is looking for volunteers to help. Meetings are the third Wednesday of the month at 5:30 p.m. at the office on West Pleasant Street.

Fire Prevention Week Proclamation

Fire Chief Burr said that the Fire Department had received a grant for a Sparky the Fire Dog costume. Sparky the Fire Dog made his debut at the meeting.

Mayor Lovett presented the Fire Prevention Week Proclamation to Sparky the Fire Dog, and other members of the Claremont Fire Department.

Mayor Lovett announced that as part of National Recovery Month, this Saturday, September 25, REMIX will host a celebration 6:00-10:00 p.m.

Mayor Lovett said this Friday, 5:00 p.m., is the deadline for people to sign up to have their name placed on the ballot for a seat on the Council.

CITY MANAGER'S REPORT

- **147 Main Street** – Below is an update on what is happening at 147 Main Street. The City does not have a timeframe yet as to when work will be completed, since that weighs heavily on the approval of the fire treatment product.

The 147 Main Street project status is as follows:

- Lead remediation has been completed in four of the seven units. The remaining three are pending the removal of the shoring in each of the units that are adjacent to the temporary shoring, before lead remediation will be completed.
 - The new exterior wall requires fire treatment. The manufacturer of a proposed product will be submitting certifications for its use for this specific application for review and approvals.
 - The interior temporary shoring walls have been removed. The structural connections of the new wall to the existing brick are under review by the engineer and will need to be approved prior to the removal of the exterior shoring and tie rods.
 - The building official will meet the electrician for this project to go over the scope of the electrical portion of the project.
- **Monadnock Mills** – The Monadnock Mills project in the Peterson building is coming along well. As of this report the roof has been replaced, the concrete on the main floor will be poured soon, and the 2nd and 3rd floor have been framed with framing continuing on the 4th floor. If progress continues two model units are planned to be available by the end of the year.
 - **Fall Festival/Chili Cook-Off and Alumni Day Parade** – October 2nd will be an exciting day in Claremont with some family fun for all. The Alumni Day Parade will start the day at 10:30 AM, beginning at Broad Street Park, continuing up toward the Middle School and onto West Pleasant before turning toward the center of town. It will then detour at the Elks and take a left onto Summer Street and then a right onto Pearl Street, proceeding to Central Street, up Main and around the Bullpen and then back onto Broad Street, where it will disband.

From 12 – 4 PM, the 23rd Annual Fall Festival and Chili Cook-Off will take place at the Visitors Center Green. Join us for live music, chili tasting and craft vendors. We are still accepting entries for the Chili Cook-Off. Anyone who is interested can go to Claremontparks.com for more information.

- **PRIMEX Update on Amtrak Station** – PRIMEX has been contacted in regards to the City’s liability at the Amtrak station. According to PRIMEX, the City has some potential premises liability exposure in the event we cause or permit an unsafe condition that harms anyone. The state law damages cap limits negligence claims against the City to \$325,000 per claimant. This is within the City’s liability coverage limits for covered negligence claims. The City has \$1,000,000 coverage under its liability policy for covered indemnification claims to the extent a third party is required to be indemnified under a contract. This liability would be similar to the liability the City would have on any public property.
- **Retro Pay for Private Lead Lines** – Public Works Director Gleeson has contacted the New Hampshire Department of Environmental Services (DES) about using the Drinking Water and Groundwater Trust Fund (DWGTF) monies to retroactively pay for private lead water line replacements. According to DES, “Reimbursements cannot be made on any construction work completed prior to the agreement being approved by Governor and Council (June 16, 2021). “
- **Pleasant Street** – Sewer line work continues along Pleasant Street. Construction ran into a few delays last week with rain runoff and sediment getting into the new sewer line. All the debris has been cleared and the replacement of the sewer line has continued. The City continues to monitor traffic through and around the project, and will continue to work with McFarland Johnson to keep traffic patterns and markings as safe as possible.
- **COVID-19 Update** – Over the past week, Claremont has had a substantial increase in active COVID-19 cases. As of the time of this report, Claremont has 50 active cases. Sullivan County’s infection rate is at 1.00, meaning each active case is currently infecting one other person. During this time, it is important that people maintain social distancing and wear masks when that is not possible.

As of today, there are 49 active cases and the infection rate is 1.17.

The City continues to follow the CDC’s current recommendation that all people, including those that are fully vaccinated, wear a mask in public indoor settings in areas of substantial or high transmission. Sullivan County, along with all counties in the State of New Hampshire, continue to have substantial transmission rates.

Experts recommend that the best way to protect yourself from COVID-19 and the Delta Variant is to get the COVID-19 vaccination, which is still over 90% effective against this variant. According to the New Hampshire Department of Health and Human Services COVID-19 website, Claremont has a vaccination rate of 47.9% with one shot and 44.1% that are fully vaccinated. The City encourages residents to get vaccinated and to wear masks in accordance with CDC guidelines:

- The City of Claremont and the Greater Sullivan County Public Health Network has a walk-in vaccination clinic scheduled at the Claremont Fire Station on September 21, 2021 from 4-6 PM.
- The Greater Sullivan County Health Network also has a walk-in vaccination clinic scheduled at River Valley Community College on September 28, 2021 from 10 AM -12 noon.
- Currently a tentative vaccination clinic is scheduled for early October, to be held at the Claremont Fire Station.

To answer some previous questions, Mr. Morris said the Police and Parks & Recreation Departments share the snowmobile. Governor and Council have approved a \$235,000 CDBG Grant to rehabilitate 45 Central Street (Shelter).

Councilor Stone asked about pay for the additional costs for 147 Main Street. Mr. Morris said the money comes from the CDBG Grant. Councilor Koloski said the contractor should pay to fix the wall, not taxpayer funds. Mr. Morris said he can look into that.

Councilor Demars asked about a timeframe for a strategic plan. Mr. Morris said it would be after the change of the Council in January, if Council wants to move forward with that.

Councilor Koloski said regarding the discussion to reactivate the Transfer Station Ad Hoc Committee, that the old form was used, but that was not his intent. He has no interest in constructing a new transfer station. Mayor Lovett said her thought was the intent was to look at the operational cost to see if there was a need to privatize. She said, however, the motion was to reprise the Transfer Station Ad Hoc Committee using the same composition and mission.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to reactivate the Transfer Station Ad Hoc Committee to study the operational efficiencies and the advantages and disadvantages of privatization.

Councilor Contois said the discussion was to talk about operational efficiency. He is not in favor of privatization.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 8-1.

CITIZEN'S FORUM

Joni Wyatt, Ward 3, said that she posted an event on What's Happening Claremont regarding schools and unmasking our children. Councilor Contois posted that the only thing unmasked was stupidity. She knows that Councilor Contois does not agree, but she felt he should not comment on the post. She feels he should apologize to her and to those who are against the mask.

OLD BUSINESS

None

NEW BUSINESS

Airport Master Plan Update

Chief Burr said the Airport Master Plan Update has to be presented in a public forum. This was a grant funded project with 5% coming from the Airport Reserve Fund. He introduced Janice Bland, Senior Aviation Planner, Stantec; and Kate Trapani, Aviation Planner, Stantec.

Ms. Bland and Ms. Trapani showed a PowerPoint presentation: Claremont Airport Master Plan Update.

- Agenda
- Planning Process
 - Planning Advisory Committee (PAC)
 - Funded 90%, 5% DOT & 5% City
- Existing Conditions
- Current Facilities
 - Runway 11-29 – 3,100' x 100' with displaced threshold on RW 11 end
 - Design aircraft = Beech Baron 58
 - 19 based aircraft and 4,144 annual operations
 - New terminal building and apron projects completed this year
 - Land available from former crosswind runway
- Forecast
- Preferred Forecast
 - Low, medium and high growth scenarios
 - Medium = near term growth spurt due to new capital improvements (terminal, apron, runway). Rate of growth will level off.
 - Design aircraft – Cessna 172
 - 20-year plan
 - Operations increase from 4,144-5,625
- Facility Requirements
- Runway 11-29

- Project underway to rehabilitate runway (AIP funded)
 - Length to remain the same – 3,100'
 - Width reduced from 100' to 75'
 - Easement acquisitions underway to clear vegetative obstructions to runway approaches (both ends)
- Taxiway Deficiencies
 - All taxiways > 25' standard width
 - Direct access with no turn; poor pavement
 - Acute angle; no lighting; poor pavement
 - Hold position too close
- Miscellaneous Facilities
 - Hangars. Needed in the short term to support anticipated growth
 - Fuel. Underground fuel tank upgrade to aboveground will be required within the intermediate term
 - Snow removal equipment. The equipment is aging and is eligible for replacement in the short and intermediate terms
 - Auto parking. Minimal expansion needed
- Alternatives Analysis
- Preferred Alternative
 - Future apron expansion
 - Runway 11-29 3,098' x 75'
 - Taxiway A to be relocated
 - Pavement to be removed
 - Taxiway B to be squared off
- Airport Layout Plan
 - Just because it is on the plan, does not obligate the City
 - A. Hangar development
 - Taxiway A relocation
 - B2. Aero/Non-Aero development
 - B1. Hangar development
 - D. Solar development
 - E. Aeronautical development
 - Taxiway B realignment
 - Runway rehabilitation
 - F. Aero/Non-Aero development
- Terminal Area Plan
 - Terminal parking
 - #2 new hangar
 - #13 SRE building expansion
 - #12 new hangar
 - #6 new aboveground fuel tank
 - Apron expansion
- Implementation Plan
- Short Term Projects

- 0-5 years
- Easement acquisition Phase 1, 2021
- Obstruction removal Phase 1, 2022
- Runway 11-29 rehabilitation, 2022
- Easement acquisition Phase 2, 2022
- Obstruction removal Phase 2, 2022
- Snow removal equipment, 2023
- Taxiway A realignment, 2024
- Area A hangar development, 2025
- Intermediate Term Projects
 - New fuel tank, 2026
 - Hazard beacon replacement or removal, 2026
 - Taxiway B realignment, 2027
 - Snow removal equipment, 2028
 - Runway 5 end pre-development, 2029
 - Parking lot paving, 2029
 - Taxiway C rehabilitation, 2030
- Long Term Projects
 - Apron area expansion, 2031
 - RPZ property acquisition, 2032
 - Equipment storage building, 2033
 - Snow removal equipment, 2034
 - Runway 11-29 crack sealing, 2036
 - Obstruction removal, 2037 (for trees that may grow over time)
 - Area B1 hangar development, 2038
- Moving Forward
- Next Steps
 - Incorporate feedback
 - Finalize report
 - Finalize ALP set including signatures
 - Project closeout

There was a discussion about the need for a fuel tank upgrade (inground tank reaching the end of its useful life) and solar (will require FAA approval).

Ms. Bland said this is a 20-year plan, but would be updated depending on how quickly the airport projects are funded and when the need arises for an Airport Master Plan update.

Regarding capacity, Ms. Trapani said Claremont has plenty of capacity. With the new aircraft, it would be anticipated we would need more hangars. Operationally, the runway can support many more operations.

Regarding marketing the airport, Mr. Morris said we would need to build an advertising plan to get that information out.

Regarding the land where the Great Lakes building was, Chief Chase said that it is outside the fence. Ms. Bland said there is a height restriction in that area.

Regarding downsizing to a smaller aircraft, Ms. Bland said that based on data obtained, the Cessna 172 was determined to be the critical aircraft right now. The safety surfaces do not change. Narrowing of the runway is an FAA standard.

Resolution 2022-8 Airport Runway Rehabilitation Project Grant – Public Hearing

WHEREAS the City is undertaking the Airport Runway Rehabilitation Project (the “Project”) at the Claremont Municipal Airport; and

WHEREAS the City has applied for a grant to Rehabilitate, Mark, Light, Sign, and Drain Runway 11-29, of said Project from the Federal Aviation Administration (the "FAA") in the amount of \$2,730,380.00; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG-02-20-2021) Airport Runway Rehabilitation Project in the amount of \$2,730,380.00; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$2,730,380.00 with 5% or \$136,519.00, as the City's share of the project, to be taken from the Airport Special Revenue Fund and the remaining funds to come from the FAA grant, SBG-02-20-2021 (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said the underground pipe for the stormwater protection is compromised. Pine Hill Construction was awarded the bid and construction is expected to start in 2022.

There was discussion about where the City’s portion of the money is coming from. The fund listed in the draft resolution was incorrect. Ms. Richmond said it is the Airport Special Revenue Fund.

Regarding funding for the Airport, Ms. Richmond said the City’s Master Plan has a section on the Airport about it being essential for economic development and transportation. Revenue from land leases at the Airport has to stay with the Airport and that is how the Airport Special Revenue Fund is funded.

A motion was made by Councilor Girard and seconded by Assistant Mayor Damren to adopt Resolution 2022-8 Airport Runway Rehabilitation Project Grant.

Councilor Girard read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Resolution 2022-9 AFG Fire Prevention Grant for Smoke Alarms – Public Hearing

WHEREAS the City of Claremont, New Hampshire has been awarded an AFG (Assistance to Firefighters) Fire Prevention and Safety Grant in the amount of \$14,285.71 for the installation of smoke alarms into single-family owner-occupied residences; and

WHEREAS the City would like to accept and expend the AFG Fire Prevention and Safety Grant funds for their intended purpose; and

WHEREAS the local cash match of \$714.29 has already been encumbered from the account, Smoke/CO Alarms (to have no impact on the tax rate);

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept a grant in the amount of \$14,285.71 from the AFG Fire Prevention and Safety Grant for the purpose of supporting Claremont's free smoke alarm and installation program for the Claremont Fire Department; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$14,285.71 for the Fire Department (from off-setting grant revenue) for the purpose of supporting Claremont's free smoke alarm and installation program for the Claremont Fire Department; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 Vote Required)

Chief Burr gave a history of the grant and the need for working smoke alarms. The Fire Department does the installation. Deadline to accept the grant is October 8.

Chief Burr thanked Amanda Benoit, Administrative Assistant, for doing a great job helping to apply for this grant.

Regarding hardwiring the units, Chief Burr said that members of the Fire Department are not electricians, so they will look to Kidde which has 10-year lithium batteries.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to adopt Resolution 2022-9 AFG Fire Prevention Grant for Smoke Alarms.

Assistant Mayor Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Annual Approval of Investment Policy

Ms. Richmond introduced Pam Dyer, the new City Treasurer.

Ms. Richmond said this is an annual review. She reviewed the RSAs and the only change was to change the number, from Division 8 to Division 9, to match the City’s Code.

After some clarifying questions and answers, a motion was made.

A motion was made by Councilor Koloski and seconded by Councilor O’Hearne that the Claremont City Council, pursuant to RSA 47:6 and RSA 48:16, hereby re-adopts the City of Claremont Investment Policy and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Investment Policy in accordance with state law and regulation.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Ordinance 585 Remove School Zones – First Reading

The purpose of this proposed change is to delete two school zones for speed limit purposes from the current list. The reason for this amendment is that these two school zones no longer have schools operating in the vicinity that would require a reduced speed limit during opening and closing school time periods. The school zone on Central Street is no longer needed because the Christian Academy has moved to a different location and there is currently no school in that area. The school zone on Old Church Road is no longer needed because the New England Classical Academy has closed and there is currently no school in that area.

Enactment of this Ordinance will revise Chapter 19, Traffic and Motor Vehicles, Article XI, Section 19-233 by removing the school zones on Central Street and Old Church Road so that reduced speed limits at the beginning and end of the school day will no longer apply in those locations. This change was requested by the City's Traffic Advisory Committee.

Mr. Morris said this had gone through the Traffic Advisory Committee.

Police Chief Mark Chase said there are no longer any schools at those two locations.

A motion was made by Councilor Girard and seconded by Councilor Demars to adopt Ordinance 585 Remove School Zones on first reading.

Councilor Girard read the explanation of proposed action into the record.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes
Lovett - yes
Motion carried 9-0.

RSA 91-A Protocols

Mr. Morris talked about the response to a recent RSA 91-A request for emails and the redactions. He said he talked to Attorney Tanguay and the budget documents were in draft form, so they were not disclosable. The attorneys did a balancing test regarding personal emails, and it came down to the public's right to know. They felt releasing personal information had no bearing on the City's actions. Another community had a similar request and it took over 6 months to respond; it is very expensive. Mr. Morris said email is a communication tool and not a data storage software. One community automatically deleted its emails after 45 days, but he didn't think that was the way to go. A lot of emails coming in can be deleted legally and that would reduce the available emails. This is not just a Claremont problem. He heard Manchester had a request that cost almost \$30,000 and Keene is hiring an attorney to respond to 91-A requests. He gave some background on that recent RSA 91-A request, including some of the actions taken by legal counsel. The City doesn't have the staff available to go through this process, nor would he put himself or any of the staff in a position to have to make a legal decision about those emails.

Councilor Koloski objected to redacting personal email addresses and the draft budget. Councilors Matteau and Stone agreed with Councilor Koloski and felt that a policy is needed. Councilor Stone recommended this go to the Policy Committee to develop a policy. Councilor O'Hearne said City employees have different standards than elected officials and that the Council needs to discuss a Council policy. Councilor Demars agreed this should go to the Policy Committee.

Councilor Matteau said Council needs to think about an LSR (Legislative Service Request) to get these costs covered. Mayor Lovett said the only way to introduce an LSR is through the Senate for this year.

Assistant Mayor Damren said once a policy is set, he thinks it would be good to understand the balancing test.

A motion was made by Councilor Koloski and seconded by Councilor Matteau to send this to the Policy Committee to draft a Council email policy.

Roll call vote:
O'Hearne - yes
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes

Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

None

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:58 p.m., a motion was made by Councilor Matteau and seconded by Councilor O’Hearne to adjourn.

Roll call vote:
O’Hearne - yes
Girard - yes
Demars - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council